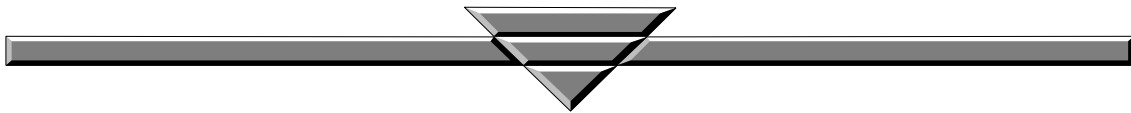
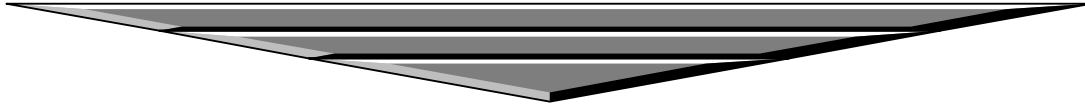
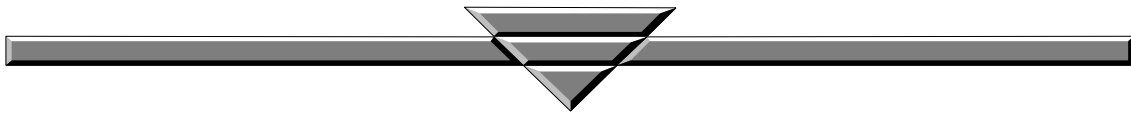




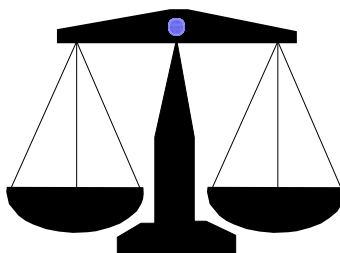
**NATIONAL CAPITAL REGION  
COUNCIL**



# **PSAC NATIONAL CAPITAL REGION COUNCIL**



## **BY-LAWS AND REGULATIONS**



As adopted by the Founding Meeting of the  
National Capital Region Council of the  
Public Service Alliance of Canada  
May 23, 1998

and as amended by the National Capital Region  
Council on

January 23, 1999  
May 15 & 16, 1999  
September 25, 1999  
January 22, 2000  
September 23, 2000  
January 20, 2001  
May 5 & 6, 2001  
April 27 & 28, 2002  
September 7 & 8, 2002  
May 16 & 17, 2004  
April 30, May 1 & 2, 2005  
April 22 & 23, 2006  
April 21 & 22, 2007  
May 23-24 & 25, 2008  
September 26, 2009  
May 1 & 2, 2010  
June 4 & 5, 2011  
May 9, 10 & 11, 2014  
May 5, 6 & 7, 2017  
June 1 & 2, 2019  
June 16 - 18, 2023  
June 8-9, 2024

June 13 and 14, 2025

# **BY-LAWS**

## **NATIONAL CAPITAL REGION COUNCIL**

### **PUBLIC SERVICE ALLIANCE OF CANADA**

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## **SECTION 1 – NAME**

Pursuant to Section 16 of the Public Service Alliance of Canada (PSAC) Constitution, the organization of the PSAC in the National Capital Region (NCR) shall be known as the PSAC National Capital Region Council (PSAC NCRC or the Council).

## **SECTION 2 – AIMS, MANDATE, OBJECTIVES**

### **2.1. Preamble**

**WHEREAS** the PSAC NCRC is committed to uniting all of its members in the NCR in a single democratic organization which benefits all;

**WHEREAS** the PSAC NCRC recognizes that its members are represented by unions certified under various legislative authorities, including federal/provincial legislative authorities including the *Canada Labour Code*, the *Ontario Labour Code*, the *Québec Labour Code*, the *Parliamentary Employees Staff Relations Act* and the *Public Service Labour Relations Act* and that all voices and specific concerns must be heard in the Council structure;

**WHEREAS** the PSAC NCRC recognizes that its members experience the world differently depending on their gender and/or linguistic backgrounds and have historically been disadvantaged in the union and in other domains for reasons based on gender and language;

**WHEREAS** the PSAC NCRC recognizes that members who experience intersecting or multiple grounds of discrimination based on their age, sex, colour, national or ethnic origin, race, religion, marital status, family status, criminal record, physical or mental disability, sexual orientation, gender identity or expression, language, political belief, social and economic class or employer and other factors cannot separate their struggle as workers from other campaigns for justice in which they are engaged;

**IT IS HEREBY DECLARED THAT** the PSAC NCRC will:

- a) attempt to achieve the full representation on the PSAC NCRC of all Locals and Branches taking into account their certification process;
- b) strive to achieve the equal representation of women and men on the PSAC NCRC and, if necessary, will incorporate special measures to ensure the full and equal participation of women in the PSAC NCRC;
- c) strive to create an environment in which both official linguistic groups are recognized and linguistic rights are respected. To this end, every other meeting of the PSAC NCRC and NCRC Executive should be chaired alternately in English and in French;



- d) recognize and support the equality-seeking groups advocated for by the PSAC.

## **2.2. Objectives**

- a) To implement an efficient communications structure among all PSAC members and locals throughout the NCR; and
- b) provide for a PSAC structure in the NCR that reflects the complex needs and reality of the NCR while respecting the constitutional integrity of the PSAC.

### **SECTION 3 – LANGUAGE**

Both English and French shall be the languages of the PSAC NCRC and the NCRC Executive. To this end:

- a) simultaneous translation in both official languages will be provided at all meetings of the PSAC NCRC-and its Executive; and,
- b) all formal/official documents of the PSAC NCRC-and its Executive will be made available in both official languages.

## **SECTION 4 – ACCESS**

The PSAC NCRC and its Executive are to be inclusive to all members and guests-and to that end will:

- a) Upon request, or known requirements, all official documentation of all meetings and events will be provided in alternate format (which may include electronic);
- b) All meetings and events will be held in accessible locations;
- c) Upon request, or known requirements, sound amplification equipment designed for use with hearing devices, such as hearing aids, will be provided for use at meetings and events;
- d) Upon request, or known requirements, sign language interpretation will be provided at meetings and events;
- e) Upon request, or known requirements, any ergonomic equipment required to allow Persons with Disabilities to fully participate in meetings and events will be provided or accommodated;
- f) Upon request, or known requirements, all meetings and events will be organised taking into consideration allergies and dietary restrictions of the participants;
- g) Upon request, or known requirements, Persons with Disabilities may freely stand and move about at any meetings and events; and,
- h) Upon request, or known requirements, Members who pre self identify to appropriate PSAC staff members, may leave and/or enter any meetings where the doors are tiled.

## **SECTION 5 – DEFINITIONS**

- a) **“NCR Local”** means a Local, Directly Chartered Local (DCL) or Branch with the majority of its members working in the NCR.
- b) **“NCR Component Regional Officer”** means an elected Component Regional Officer who is a resident of or works in the NCR and the majority of whose member jurisdiction works in the NCR; or a Component Regional Officer who is a resident of or works in the NCR, represents a large number of members in the NCR, and has chosen, within three months after the Founding Meeting or three months after NCR members become a minority of their jurisdiction, to participate in the NCR Council rather than another Regional Council; or a Component Regional Officer who is a resident of or works in the NCR, whose NCR members are a minority of their jurisdiction, and who chooses within three months of their election to participate in the NCR Council.

## **HUMAN RIGHTS COMMITTEES**

- c) **Indigenous Action Circle (IAC)** is a committee of PSAC members in the NCR who seeks to assist the PSAC, the NCRC and Locals in carrying out the actions outlined in the PSAC Statement of Principles on Indigenous Peoples’ Rights.
- d) **Members with Disabilities Access Committee (MDAC)** is a committee who welcomes members with visible and invisible disabilities, whether physical, sensory or psycho-social, either permanent or temporary in duration. The purpose of the committee is to ensure that PSAC members with disabilities are given the opportunity to participate fully in their union and in their workplace.
- e) **Racialized Members’ Action Committee (RMAC)** is a committee who provides a forum for racialized members to focus on the elimination of discrimination, harassment and racism.
- f) **Pride Committee** is a committee of PSAC-NCR 2SLGBTQIA+ members who support, protect and promote the interests of the 2SLGBTQIA+ community in the NCR.
- g) **Ottawa Regional Women’s Committee (ORWC)** is a committee who provides women in the PSAC-NCR a meeting place where they can

discuss, work collectively and organize activities aimed at promoting the defence of women's rights. The ORWC operates entirely in English.

- h) **Comité régional des femmes francophones (CRFF)** is a committee who provides women in the PSAC-NCR a meeting place where they can discuss, work collectively and organize activities aimed at promoting the defence of women's rights. The CRFF operates solely in French.

## **AREA COUNCILS (POLITICAL ACTION COMMITTEES)**

- i) **Ottawa Area Council (OAC)** is a committee who raise awareness on issues affecting our members, workers and the Canadian public such as workers' rights and social justice. Members also participate in awareness activities with politicians led by the PSAC. The OAC works on the Ontario side of the PSAC-NCR.
- j) **Conseil régional d'action politique de l'Outaouais (CRAPO)** is a committee who raise awareness of issues affecting our members, workers and the Canadian public such as workers' rights and social justice. Members also participate in awareness activities with politicians led by the PSAC. The CRAPO works on the Quebec side of the PSAC-NCR.

The establishment, the organization and the operation of Area Councils is governed by the PSAC Constitution.

## **OUTREACH AND MEMBER ENGAGEMENT COMMITTEES**

- k) **Education** is a committee who plays an active role in developing the PSAC-NCR Education Program. The Committee discusses union education needs, determines how the region should respond to these needs and finds ways of engaging members through union education.
- l) **Health and Safety (H&SC)** is a committee who promotes health and safety awareness and activism in our region by equipping members to contribute to the creation and to the preservation of healthy and safe work environments
- m) **Communications Committee** is a committee of PSAC members in the NCR who provides recommendations to the NCRC Executive and its

regional committees on communications issues. The Committee also provides support to Locals and to PSAC campaigns.

- n) **Young Workers Committee (YWC)** is a committee of PSAC members who educate young workers about the labour movement; engage, mobilize and retain young workers. The committee also raises awareness on a series of issues that young workers face today. Members of this committee are 35 years of age and underaged.
- o) **Directly Chartered Locals (DCL) Committee** is a committee of PSAC members in the NCR who belong to Locals that are directly chartered to the PSAC (not affiliated with a Component). The committee aims to promote the engagement of DCL members in their union, provide a forum to discuss common issues and work collectively to find solutions.

## **SECTION 6 – MEMBERSHIP RIGHTS**

Every member in good standing as defined in Section 5 of the PSAC Constitution is entitled:

- a) to be represented by the union;
- b) to be free from any act or omission on the part of the union, or other members, that would discriminate against the member on the basis of age, sex, colour, national or ethnic origin, race, religion, marital status, family status, criminal record, physical or mental disability, sexual orientation, gender identity or expression, language, political belief, social and economic class or employer and other factors;
- c) to be free from harassment by another member, both within the union and in the workplace on the basis of any of the grounds mentioned in paragraph (b); and
- d) to be nominated for and hold elected office in the region subject to any qualifications stipulated elsewhere in the PSAC Constitution and these By-Laws;
- e) to participate in the official language of their choice at all regional functions in keeping with the Constitution of the PSAC.

## **SECTION 7 – NATIONAL CAPITAL REGION COUNCIL**

### **7.1. Composition**

The composition of the PSAC-NCRC shall be:

- a) the Regional Executive Vice-President - National Capital Region (REVP, NCR); and
- b) the Alternate Regional Executive Vice-President - National Capital Region (AREVP, NCR); and
- c) the Regional Treasurer; and
- d) each NCR local, as defined by Section 5 a) is entitled to one (1) delegate for the first 215 members and one (1) additional delegate for each 215 members or portion thereof; and
- e) each component is entitled to one (1) delegate who will serve as an NCR Component Regional Officer pursuant to Section 5 b) of the PSAC-NCR BYLAWS; and
- f) two (2) members elected to represent the NCR on PSAC's National Indigenous Peoples' Circle; and
- g) one (1) delegate for each active Regional Human Rights Committee, as set out in Section 5 of the PSAC-NCR BYLAWS; and
- h) one (1) delegate for each active Area Council, as set out in Section 5 of the PSAC-NCR BYLAWS; and
- i) one (1) delegate for each active Regional Outreach and Member Engagement Committee, as set out in Section 5 of the PSAC-NCR BYLAWS; and
- j) two (2) Separate Employer Representatives elected pursuant to the PSAC-NCR BYLAWS; and
- k) six (6) Members at Large elected pursuant to the PSAC-NCR BYLAWS.

#### **7.1.1 Component and Local Representation**

- a) Components without NCR Component Regional Officers may appoint a delegate to the PSAC-NCRC providing that the appointee:
  - i. resides or works in the NCR; and
  - ii. holds elected office in an NCR local or Branch or is an alternate to a Component Regional Officer.
- b) When a local delegate is elected to another position listed in bylaw 7.1 the local will designate another member as delegate to the PSAC-NCRC per section 7.1 (d).



## **7.2. General Meetings**

Meeting of the PSAC- NCRC shall:

- a) be chaired by the REVP-NCR, or, in their absence, by the AREVP-NCR.
- b) adopt rules of procedure governing the processing of all matters before it.
- c) deal with all resolutions and matters submitted to it by NCR Locals, Area Councils and regional committees as defined in Section 5 of these Bylaws.
- d) deal with any administrative matter placed before it by the delegates, in the manner prescribed by the procedural rules adopted by the PSAC NCRC meeting for the orderly conduct of its business.

### **7.2.1 Frequency**

The PSAC NCRC will hold at least two (2) regular meetings per year.

### **7.2.2 Quorum**

Quorum at PSAC NCRC meetings will consist of the REVP or AREVP and twenty percent (20%) of members of the Council, including members elected to the Executive.

### **7.2.3 Special Meetings**

Special meetings of the PSAC NCRC will be convened if 10% of Council members so signify their wish by petition to the NCRC Executive.

## **7.3 Annual General Meetings**

Annual General Meetings of the PSAC-NCRC shall:

- a) be chaired by the REVP, NCR, or, in their absence, by the AREVP.
- b) adopt rules of procedure governing the processing of all matters before it.
- c) deal with all resolutions and matters submitted to it by NCR locals, area councils and regional committees as defined in Section 5 of these Bylaws.
- d) deal with any administrative matter placed before it by the delegates, in the manner prescribed by the procedural rules adopted by the PSAC-NCRC meeting for the orderly conduct of its business.

- e) hold elections for the following positions:
  - i. Regional Treasurer (1)
  - ii. Member of the Standing Finance Committee (3)
  - iii. Member at Large (3)
  - iv. Separate Employer/DCL Representative (1)
  - v. alternate Member of the Standing Finance Committee (3)
  - vi. alternate Member at Large (3)
  - vii. alternate Separate Employer/DCL representative (1)
- f) deal with any amendment of, deletion from or addition to the PSAC-NCR BYLAWS.
- g) will be held over the course of two (2) days.

### **7.3.1 Frequency**

The PSAC-NCRC will hold an Annual General Meeting in the Spring (Apr-May-June) each year where no Triennial Regional Convention is held.

### **7.3.2 Quorum**

Quorum at a PSAC-NCRC AGM will consist of the REVP or AREVP and twenty percent (20%) of members of the Council, including members elected to the Executive.

## **7.4. NCRC Executive**

### **7.4.1. Composition**

The PSAC NCRC Executive shall be composed of the following members:

- i. the REVP-NCR;
- ii. the representatives delegated by each of the Committees defined in Section 5c) to 5o) of these Bylaws;
- iii. a Treasurer to be elected by the Council;
- iv. six (6) members-at-large to be elected by the PSAC NCRC; members- at-large shall forfeit this position if elected to the PSAC NCRC Executive in any other capacity;
- v. two (2) members delegated by the NCR Separate Employer and DCL, to be elected by Separate Employer and DCL delegates in caucus, and one (1) alternate, to join the Executive in case of a vacancy.

### **7.4.2. Alternates**

- a) Three (3)–alternates-at-large shall be elected in accordance with the procedures in Section 15.2. In the case of a vacancy on the Executive, it shall be filled by the first alternate and a second vacancy by the second alternate.
- b) A vacancy in the office of the REVP shall be filled by the AREVP.
- c) A vacancy in the office of AREVP occurring six months or more prior to the NCR Triennial Convention shall be filled in the following manner:
  - i) Nominations shall be called by the Alliance Executive Committee (AEC) from amongst all members in the NCR.
  - ii) The AEC shall ensure that all nominees are members in good standing of the PSAC-NCR, and that the nominator and seconder were delegates at the previous NCR Triennial Regional Convention.
  - iii) The nominations process will be concluded within 60 days from the date of notice of vacancy in the position of AREVP.
  - iv) If there is more than one nominee for the office of AREVP, and an election is necessary, it shall be conducted by the AEC from amongst those members in good standing who were voting delegates at the preceding NCR Triennial Regional Convention.

### **7.4.3. Frequency of Meetings**

The PSAC NCRC Executive shall meet a minimum of four (4) times per year. Special meeting of the PSAC NCRC Executive shall be convened if 3 Executive members so signify their wish by petition to the REVP, or at the request of the REVP.

### **7.4.4. Local Designations**

A Local whose representative is elected to the Executive may, if so desired, designate another Local member to represent the Local on the PSAC NCRC.

### **7.4.5. Council Status**

Every member of the PSAC NCRC Executive is a member of the NCR Council.

#### **7.4.6. Term of Office**

Three (3) of the six (6) Members at Large are elected for a term of two (2) years, starting at the 2016 AGM;

The three (3) remaining positions for Members at Large are elected for a term of two (2) year, starting at the 2017 AGM;

One (1) of the two (2) positions of representative for Separate Employers and DCLs are elected for a term of two (2) years, starting at the 2016 AGM;

The other remaining position of representative for Separate Employers and DCLs are elected for a term of two (2) years, starting at the 2017 AGM;

The Treasurer and the Alternate Treasurer are elected for a term of one (1) year.

The REVP and the AREVP are elected for a term of three (3) years at the NCR Triennial Convention; and

#### **7.4.7. Quorum**

Fifty per cent plus one (50% +1) shall constitute quorum for the PSAC NCRC Executive.

## **SECTION 8 – ROLES AND RESPONSIBILITIES**

### **8.1. REVP-NCR**

The REVP-NCR shall:

- a) represent the NCR at all meetings of the NBoD
- b) reports in writing on their activities at each meeting of the PSAC NCRC;
- c) assume responsibility for the production and distribution of minutes for the PSAC NCRC and its Executive;
- d) act as an ex-officio member of all operational committees and shall have the authority in consultation with the PSAC NCRC Executive to designate a member of the Executive as an ex-officio member to all operational committees;
- e) shall interpret the PSAC NCRC By-Laws.

### **8.2. PSAC NCRC Executive**

The PSAC NCRC Executive shall be responsible for:

- a) advising the REVP and recommending actions that benefit the PSAC membership in the NCR.
- b) establishing regional communications networks for members where required.
- c) identifying the needs and promoting services in the region including education, health and safety and others;
- d) creating and maintaining committees to accomplish the goals and objectives as established by council; and
- e) the functioning of the PSAC NCRC between meetings;
- f) the appointment of interim Executive members in case of vacancies that cannot be filled by alternates.

- g) each member of the Executive shall provide a written activities report for the previous year at the AGM.

### **8.3. Treasurer**

The Treasurer will be elected in accordance with Section 15.2. The Treasurer shall:

- a) Present a draft annual budget to the first PSAC NCRC meeting of the year for approval;
- b) Present a current financial statement to each meeting of the PSAC NCRC and its Executive; and
- c) Present an audited financial statement for the previous fiscal year to the PSAC NCRC AGM for approval.

### **8.4. Alternate Treasurer**

The alternate Treasurer shall be elected at the first PSAC NCRC Executive meeting following the PSAC NCRC AGM, from amongst the Executive members. In the absence or resignation of the Treasurer, the alternate shall assume the responsibilities of the Treasurer.

## **SECTION 9 – COMMITTEES**

- a) The PSAC NCRC Executive shall have the authority and the responsibility for establishing operational/standing committees of Council.
- b) The PSAC NCRC recognizes and supports the existence of the NCR Committees as defined in Section 5c) to 5o) of these Bylaws.
- c) The PSAC NCRC shall elect a Standing Finance Committee in accordance with the procedures in Section 15.2.

## **SECTION 10 – FINANCES AND COLLECTION OF MEMBERSHIP DUES**

- a) The PSAC NCRC shall be funded, among other sources, from the budget allocated by the PSAC to the NCR and from any membership dues levied on participating Locals (including DCLs) and Branches.
- b) Any determination of dues by the PSAC NCRC pursuant to Section 16, Subsection 2 of the PSAC Constitution will require a two-thirds majority vote of the delegates present at an AGM.
- c) A notice of motion must be given at any PSAC NCRC meeting preceding an AGM for any dues levied.
- d) The fiscal year of the PSAC NCRC shall be from January 1 to December 31 and all financial records shall be retained for seven years.
- e) Ratification of the annual budget requires a two-thirds majority vote of the delegates present at the PSAC NCRC.
- f) The PSAC NCRC Executive shall have the authority to spend up to \$2,000.00 on any unbudgeted expense. Such expenditures shall require a 2/3 majority vote.
- g) An annual attest audit shall be conducted on the PSAC NCRC revenues and expenditures in March of each year, by an independent certified auditor. The auditor shall be chosen at first PSAC NCRC meeting of the year.
- h) The Standing Finance Committee or any PSAC NCRC delegate can recommend a forensic audit to Council at any time. A 50% majority shall be required to accept such a recommendation.

### **10.1. Signing Authority**

The REVP-NCR, the Treasurer, and the Alternate Treasurer will constitute the authorized signing authority for the PSAC NCRC. Two of these three signatures shall be required on all disbursements.



## **SECTION 11 – REMOVAL FROM OFFICE/DISCIPLINE**

- a) In accordance with PSAC Constitution, Section 25 and Regulation 19, NCRC Executive will forward: disciplinary findings, recommendations and reports to the appropriate PSAC bodies responsible for application of discipline.
- b) Upon application, the PSAC NCRC or its Executive may authorize a leave of absence for cause.

## **SECTION 12 – AMENDMENT OF BY-LAWS**

- a) Any amendment of, deletion from or addition to these By-Laws shall become effective by approval of two-thirds (2/3) of the delegates voting at the AGM of the PSAC NCRC.
- b) Unless otherwise specified, any amendment of, deletion from or addition to these By-Laws shall become effective at the time of its adoption.

## **SECTION 13 – REGULATIONS**

The PSAC NCRC Executive shall have the authority to make such policies and regulations as are necessary for the administration of the affairs of the PSAC NCRC provided such policies and regulations do not conflict with these By-Laws or with the Constitution of the PSAC.

## **SECTION 14 – PSAC NCRC MEETINGS & NCR CONVENTIONS**

### **14.1** The PSAC NCRC shall:

- a) hold its AGM in the Spring (Apr-May-June) of each year; and
- b) elect the treasurer, members at large, alternate members at large and separate employers and DCL representatives.

### **14.2** The PSAC NCRC meetings shall:

- a) be chaired by the REVP-NCR, or, in their absence, by the AREVP-NCR
- b) adopt rules of procedure governing the processing of all matters before it;
- c) deal with all resolutions and matters submitted to it by the Locals, DCLs, Branches, regional committees as defined in Section 5 of these Bylaws;
- d) deal with any administrative matter placed before it by the delegates, in the manner prescribed by the procedural rules adopted by the PSAC NCRC meeting for the orderly conduct of its business.

### **14.3** The AGM of the PSAC NCRC held in the year preceding the PSAC National Triennial Convention shall:

- a) be designated as the Triennial Regional Convention of the NCRC, to elect the REVP-NCR and AREVP-NCR, and to adopt resolutions to be forwarded to the PSAC National Triennial Convention;

For the purpose of representation at the Regional Triennial Convention:

- b) the representatives delegated defined in Section 7.1.1(a) of these Bylaws;
- c) members of the NBoD and full time Component Vice-Presidents shall be entitled to delegate status in the caucus they have elected to participate in as per Section 19, Sub-Section 5 b) of the PSAC Constitution

## **SECTION 15 – REPRESENTATION AND VOTING AT THE PSAC NCRC MEETINGS**

### **15.1 Eligibility for Office**

To be eligible for office, a nominee must be a member in good standing of the PSAC and must be resident of or work in the NCR. A nominator and a seconder must be duly accredited delegates at the meeting at which elections are held. In the event that a member is not present at the meeting at which elections are held, but wishes to be nominated, he or she must have indicated in writing their willingness to stand.

Nominees for the office of the REVP-NCR shall be prepared to live in a location as determined by the AEC.

### **15.2. Election of Officers**

- a) A Nominations Committee of at least three (3) persons shall be appointed by the PSAC NCRC from among those present, other than staff.
- b) The duties of the Nominations Committee shall be:
  - i) to receive nominations for the offices of REVP and AREVP and to receive nominations for the positions of Treasurer, the six (6) at-large members and alternates;
  - ii) to verify the eligibility of the nominees for office;
  - iii) to ascertain the willingness of the nominees to accept and perform the duties of office to which they may be elected; and
  - iv) to report to the Triennial Regional Convention or the PSAC NCRC AGM the names of all such nominees.
- c) Nominations for all positions, excluding those mentioned in Section 7.1.1(a)(viii) and of these By-Laws, shall be filed with the Nominations Committee in writing, signed by a nominator and a seconder, each of whom shall be an accredited delegate. Nominations can also be received from the floor.
  - i. Nominees for REVP and AREVP who are not present at the Convention must submit a nomination form to the PSAC Regional Coordinator prior to the start of the Regional Convention.

- ii. Nominees for REVP and AREVP who are present at the Regional Convention can submit a nomination form to the Regional Coordinator prior to the start of the Regional Convention to the Nominations Committee during Convention or be nominated from the floor of the Regional Convention. The Regional Coordinator will provide nomination forms received prior to the commencement of Convention to the Chair of the Nominations Committee as soon as the Nomination Committee has been ratified by Convention.
- d) The Chairperson of the Nominations Committee shall be appointed by the PSAC NCRC. The elections shall be conducted by either the Chairperson of the Nominations Committee or by a member or former member of the PSAC invited by the PSAC NCRC executive. The Chairperson shall conduct the election of officers and shall have the power to appoint scrutineers and assistants to conduct elections in an orderly fashion subject to the limitations of 15.2.a) above.
- e) Elections shall be conducted in the following order: the REVP, followed by the alternate REVP, the Treasurer followed by the three (3) members-at-large, followed by the three (3) alternates, three members of the Standing Finance Committee. Each office shall be called in turn and completed before the next office is called.
- f) The nominee, or someone chosen by the nominee, may speak for not more than three (3) minutes on behalf of the nominee.
- g) The election to each office shall be by secret ballot in accordance with Section 23 (Subsections 8, 9 and 10) of the PSAC Constitution.
- h) Election to the office of REVP and AREVP shall be declared only on receipt of a clear majority of the ballots cast with standings revealed to voting delegates after each ballot. In the event that more than two (2) nominees stand for election to any one office, the election procedure shall be by the way of elimination.
- i) In the event of a tie vote, the Chairperson shall immediately take a second ballot without recess or adjournment. If this results in a second tie vote, the Chairperson shall call a short recess before taking the third ballot.
- j) Upon completion of the election of the REVP and AREVP, the Nominations Committee will sign a declaration outlining the number of accredited delegates, the number of accredited delegates voting, the vote

tally for each candidate, and the number of spoiled ballots for each ballot during the election of the REVP. The signed declaration will be forwarded to the PSAC National President and maintained on file.

- k) The REVP and the AREVP shall take office at the end of the NCR Triennial Regional Convention.
- l) Members elected to the position of REVP shall not hold Component, Local or Branch Executive Officer positions other than steward.
- m) Members elected to the PSAC NCRC Executive shall hold only one position on the Executive.

### **15.3. Submission of Resolutions**

- a) The PSAC NCRC Executive shall establish a Resolutions Committee(s) of NCRC members to deal with all resolutions.
- b) Resolutions may be submitted by the PSAC NCRC and its Executive, NCR Committees as defined in Section 5 of these Bylaws and locals of the NCR.
- c) Resolutions are to be submitted six weeks prior to any PSAC NCRC meeting. Resolutions received after this cut-off shall be considered late resolutions.
- d) Emergency resolutions shall be presented to the meeting Chair for referral to the Resolutions Committee, who shall determine whether the resolution treats a situation which was not known at the time of the original call for resolutions. The assembled delegates will be asked to vote on the acceptance of an emergency resolution.
- e) A motion to refer must be made to forward to the PSAC NCRC Executive any resolutions not dealt with at any meeting of the PSAC NCRC.

## **SECTION 16 – OATH OF OFFICE**

*"I \_\_\_\_\_, having been elected an officer of the PSAC National Capital Region Council, solemnly declare that for my term of office I shall abide by and uphold the NCRC By-Laws and the Constitution of the Public Service Alliance of Canada, fulfill the duties of such office, will maintain and uphold the dignity of the Union and will always keep confidential all matters concerning the affairs of the Union that are brought to my attention."*



## **REGULATIONS TO THE BY-LAWS OF THE PSAC NCRC**

### **REGULATION 1 – RULES OF ORDER**

The PSAC NCRC will follow the PSAC Rules of Order and will abide by Regulation 12 of the PSAC Constitution, with the following exceptions:

- a) speeches shall be limited to three minutes;
- b) a vote by secret ballot shall be taken only on a substantive motion at the request of one-third of the delegates present;
- c) one-third of the delegates at the PSAC NCRC meeting may request, and have ordered, a recorded vote. Upon receiving such a request, the Chairperson shall require the calling of the roll and record the names of those delegates voting in the affirmative and in the negative. Once the Chairperson has called the question, it shall not be in order to request a recorded vote;
- d) election of officers shall be conducted in accordance with the provisions of the PSAC NCRC By-Laws.

## REGULATION 2 – COMMITTEES

- a) The PSAC NCRC Executive will establish the mandate and terms of reference, including reporting structure, for any operational and/or standing committee it establishes subject to the PSAC NCRC Bylaws.
- b) Notwithstanding Subsection (a), the equality-seeking committees recognized in the PSAC NCRC Bylaws shall have the authority to establish their own mandates and terms of reference.
- c) A list of committees of the PSAC NCRC will be published annually along with a list of committee contacts.
- d) Finance Committee:
  - i) shall be composed of three people and shall meet with the REVP-NCR and the Treasurer when necessary, but at least before each regularly scheduled meeting of the PSAC NCRC;
  - ii) will review past and present expenditures and will provide the costing for resolutions and/or motions presented to the meetings of the PSAC NCRC and its Executive;
  - iii) will report in writing to the PSAC NCRC Executive immediately prior to all PSAC NCRC meetings, and copies will be provided to all delegates at PSAC NCRC meetings.

## **REGULATION 3 – PSAC NCR COUNCIL EXECUTIVE RESPONSIBILITIES**

The NCRC Executive shall be responsible for:

- a) facilitating communication among the PSAC Centre, Regional Offices, Components and Local/Branches on:
  - i) current union, social and community issues affecting members;
  - ii) Alliance education courses, conferences and fora to include member feedback;
  - iii) education, conferences and fora of labour partners and social agencies where the content would directly benefit members; and
  - iv) the rapid enhancement and maintenance of Local, Component and Alliance Centre membership lists.
- b) facilitating Local to Local communication and Regional communications networks that will aid in federal government buildings and complexes where members of many Locals and Components work, by:
  - i) mapping the Component/Local/location relationship and providing guidance and assistance in the establishment of inter-site communications;
  - ii) providing assistance and education to Locals and members in the use of telephone and computer to computer networking; and
  - iii) monitoring progress of both the Alliance Web and other Regional communications networks for the purpose of recommending improvements and assisting with their implementation.
- c) facilitating the education of members on the following matters:
  - i) Government legislation which governs the members (*PSEA, PSSRA, CLC*, etc.);
  - ii) violence and harassment in the workplace, in society and within the union;
  - iii) social skills and related issues such as family relationships, budgeting and debt counselling, grieving, alcoholism, etc.
  - iv) current vital issues such as the UCS, Pay Equity, Collective Bargaining, Strike mandates, by providing a liaison and communication service between the provider and recipient;

- d) the creation and function of committees for the express purpose of aiding and educating members in the Region. Such committees shall not be struck where their purpose would duplicate the efforts of other existing PSAC or Component committees within the Region;
- e) the functioning of the PSAC NCRC between meetings.

The AREVP, NCR is responsible for: as per Section 23, Sub-Section 11 (c) of the PSAC Constitution,

- a) assume the responsibilities and duties of the REVP-NCR on a permanent basis, if for any reason the REVP-NCR is unable to complete their term of office;
- b) assume the responsibilities and duties of the REVP-NCR on an interim basis, if so designated by the REVP-NCR (i.e., vacations, illness, national meetings, training, etc.);
- c) upon the request of the REVP-NCR, report on their activities and recommendations to an annual meeting of the NCRC;
- d) act for and assist the REVP-NCR when requested by him/her;
- e) communicate with the REVP-NCR following each NCRC and NCRC Executive meeting to review agenda items and decisions made;
- f) receive all correspondence the same as the REVP-NCR;
- g) perform other responsibilities as determined by the NCRC Executive and/or the REVP-NCR.

## **REGULATION 4 – PSAC NCRC FINANCIAL PRINCIPLES**

- 1) Committees must provide to the office of the REVP minutes of all meetings in the previous year to access funding for the current year. The Executive Assistant to the REVP will monitor this with the assistance of the assigned regional representatives. Failure to submit copies of minutes of meetings could result in denial of access to funding.
- 2) That the NCRC Committees requesting disbursement from their respective budget, must provide to the REVP's Office the following documentation:
  - a. The record of decisions (meeting minutes) containing motions requiring disbursements,
  - b. Receipts or invoices (if any),
  - c. Completed expense claim forms, as required by the REVP's Office or the Treasurer.
  - d. That the said documentation be submitted to the REVP's Office within three (3) months of the motion being adopted by the committee.
- 3) No committee of the NCRC will receive more than 25% of their 2006 allocation until they have presented a written detailed financial forecast and action plan for the year.
- 4) With the development of a 3 year budget cycle of the NCRC, Committees will be encouraged to develop a 3 year plan and allowed to carry over their unexpended funds during the 3 year cycle. Each committee will start at zero following a 3 year cycle. The first 3 year cycle to be 2006/2007/2008.
- 5) There are three (3) fundamental restrictions in association with the NCR Committee Budgets. Committees may:
  - a) approve travel outside the region to a maximum of \$500.00 per member per trip per year;
  - b) approve individual donations to a maximum of \$1,000.00 per donation per organization per year; and
  - c) approve the expenses of a guest speaker to a maximum of \$1,000.00 per event.
- 6) Committee chairs may only spend up to \$250.00. Any amount higher must be approved by the Committee executive or the membership of the committee.

## **REGULATION 5 – MEMBER-AT LARGE**

A Member-at-Large is someone who is elected to sit on the NCRC Executive but doesn't have a specific role. Unlike the chairpersons of equity or outreach committees, Members-at-Large are not elected to represent members belonging to a specific community of interest.

Members-at-Large are elected leaders of the NCR Council. As with all regional leaders, Members-at-Large are expected to contribute to regional strategies and actions in accordance with PSAC priorities.

As such, shortly after the election of each new Member-at-Large, the REVP will assign them a “portfolio” in consultation with each Member-at-Large individually.

Each Member-at-Large will be asked to choose to work in a portfolio that is meaningful to them, both in terms of experience as well as interest. For this reason, Members-at-Large should notify the REVP of their area of interest or expertise as soon as possible after being elected.

For portfolios suggestions, Members-at-Large can consult the Guide for Members of the PSAC-NCR Executive or ask the REVP for suggestions.

The REVP may also designate a Member-at-Large as an ex-officio member of an operational committee of the PSAC-NCR in accordance with By-Law 8.1.

If two or more Members-at-Large are interested in the same portfolio, the REVP may expand the scope of a project or may encourage the Members-at-Large to work on different portfolios. The REVP will make the final selection if required.

Members-at-Large will report on their activities at meetings of the NCRC Executive. They will also report to the NCR Council in the manner prescribed in the By-Laws.

Should a Member-at-Large not participate in activities to advance the work of the PSAC-NCR, the REVP will follow-up with the Member-at-Large to reconfirm their interest in the role of a Member-at-Large.